

Smt. Ayushi Jain vs Arpit Jain on 17 November, 2023

Author: Saral Srivastava

Bench: Saral Srivastava

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2023:AHC:218442

Court No. - 2

Case :- TRANSFER APPLICATION (CIVIL) No. - 420 of 2022

Applicant :- Smt. Ayushi Jain

Opposite Party :- Arpit Jain

Counsel for Applicant :- Vivek Kumar Singh

Counsel for Opposite Party :- Prakash Singh, Pankaj Dwivedi

Hon'ble Saral Srivastava, J.

1. Heard learned counsel for the applicant and Sri Sandeep Kumar Rai, Advocate, bearing Advocate Roll No. A/Soo97/12, holding brief of Sri Pankaj Dwivedi, learned counsel for the opposite party .

2. The present application has been filed by the applicant-wife seeking transfer of Case No.1443 of 2021 (Arpit Jain Vs. Smt. Ayushi Jain), under Section 13 (1) (ia) & 13 (1) (ib) of the Hindu Marriage Act pending in the court of Additional Principal Judge, Family Court, Court No.3, Ghaziabad to the court of Principal Judge, Family Court, Baghpat.

3. Learned counsel for the opposite party states that he has no objection if the Case No.1443 of 2021 (Arpit Jain Vs. Smt. Ayushi Jain), under Section 13 (1) (ia) & 13 (1) (ib) of the Hindu Marriage Act is transferred from the court of Additional Principal Judge, Family Court, Court No.3, District

Ghaziabad to the court of Principal Judge, Family Court, Bathpat.

4. In view of the consent given by the learned counsel for the opposite party, Case No.1443 of 2021 (Arpit Jain Vs. Smt. Ayushi Jain), under Section 13 (1) (ia) & 13 (1) (ib) of the Hindu Marriage Act is transferred from the court of Additional Principal Judge, Family Court, Court No.3, District Ghaziabad to the court of Principal Judge, Family Court, Bathpat.

5. The Principal Judge, Family Court, Ghaziabad is directed to remit the record of Case No.1443 of 2021 (Arpit Jain Vs. Smt. Ayushi Jain), under Section 13 (1) (ia) & 13 (1) (ib) of the Hindu Marriage Act to the court of Principal Judge, Family Court, Baghpat for its disposal.

6. Accordingly, the Transfer Application is allowed with no order as to costs.

Order Date :- 17.11.2023 NS